

25PR00318 Estate of Ronald James Knutsen

County: sonoma

Division: Probate

Hearing date: 2026-09-11

Motion: Waiver of Account and Report

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Estate of Ronald James Knutsen

25PR00318

Waiver of Account and Report

Tentative Ruling: NO APPEARANCES REQUIRED. This matter is CONTINUED to November 20, 2026, at 9:30 a.m. in Department 63 to allow Petitioner time to complete notice on the Franchise Tax Board in compliance with Probate Code section 9202(c). Please refer to the Probate Examiner Notes. In addition, any funds received by the estate must be paid to the trustee of the decedent's trust. The proposed distribution does not comply with the testate directions of the decedent's pour over will. Neither has the Court approved any preliminary distribution that does not comport with the will. If the funds have already been distributed by the financial institution by operation of law, often called a pay-on-death designation or a written provision executed by the decedent prior to death that moneys owned by the decedent prior to death shall be paid after the decedent's death to a specifically designated person, then the transfer amounts to a non-probate transfer and the funds never became an asset of the decedent's estate. See Reich v. Reich (2024) 105 Cal.App.5th 1282 ("...an IRA is a nonprobate asset (§§ 5000, 5011) and because the IRA proceeds never pass through the decedent's testamentary trust to the beneficiaries' separate trusts."). In that case, the executor may need to file an amended petition to terminate the estate as there are no assets to administer. If, however, the funds were not transferred pursuant to a non-probate transfer, executor must amend the petition to include distribution of all funds to the trustee of the decedent's trust. Any supplement or amended petition must be filed at served at least 15 days before the hearing.